

Mutual Release

Agreement to Sub-Lease - Commercial

Form 539

for use in the Province of Ontario

BETWEEN:

SUB-TENANT:

AND

SUB-LANDLORD:

BROKERAGE(S):
(Listing Brokerage) (Co-operating Brokerage)

RE: Agreement to Sub-Lease - Commercial (Agreement) between the Sub-Landlord and Sub-Tenant dated the day of

20....., concerning the premises known as:

as more particularly described in the aforementioned Agreement.

We, the Sub-Tenant and the Sub-Landlord in the above noted transaction hereby acknowledge that the above described transaction is terminated and release each other and the Brokerage in the proposed transaction, from all liabilities, covenants, obligations, claims and sums of money arising out of the above Agreement, together with any rights and causes of action that each party may have had against the other and/or the Brokerage, and we direct the deposit holder to disburse the deposit of:

..... Canadian Dollars (\$CDN)

payable to:

IRREVOCABILITY: This Mutual Release shall be irrevocable by until on the day of
Sub-Tenant/Sub-Landlord (a.m./p.m.)

....., 20....., after which time if not fully executed by Sub-Tenant and Sub-Landlord, this Mutual Release shall become null and void.

For the purposes of this Mutual Release, "Sub-Tenant" includes sub-lessee, "Sub-Landlord" includes sub-lessor, Brokerage includes Listing Brokerage, Co-operating Brokerage (if applicable) and the registrants and employees of the Brokerage(s).

This release shall be binding upon the heirs, executors, administrators and assigns of all the parties executing same.

SIGNED, SEALED AND DELIVERED in the presence of: IN WITNESS whereof I have hereunto set my hand and seal:

.....
(Witness) (Sub-Tenant/Sub-Landlord/Authorized Signing Officer) (Seal) (Date)
.....
(Witness) (Sub-Tenant/Sub-Landlord/Authorized Signing Officer) (Seal) (Date)

I, the Undersigned, agree to the above offer to Mutual Release.

SIGNED, SEALED AND DELIVERED in the presence of: IN WITNESS whereof I have hereunto set my hand and seal:

.....
(Witness) (Sub-Tenant/Sub-Landlord/Authorized Signing Officer) (Seal) (Date)
.....
(Witness) (Sub-Tenant/Sub-Landlord/Authorized Signing Officer) (Seal) (Date)

CONFIRMATION OF ACCEPTANCE: Notwithstanding anything contained herein to the contrary, I confirm this Mutual Release with all changes both typed and written was finally accepted by all parties at this day of, 20.....
(a.m./p.m.)

.....
(Signature of Sub-Landlord or Sub-Tenant)

The Brokerage hereby releases all parties from any claim that the Brokerage may have had for commission or other remuneration in the above transaction, except as may be hereinbefore specifically provided

SIGNED, SEALED AND DELIVERED in the presence of: IN WITNESS whereof I have hereunto set my hand and seal:

.....
(Witness) (Listing Brokerage's Broker of Record/Manager) (Seal) (Date)
.....
(Witness) (Co-operating Brokerage's Broker of Record/Manager) (Seal) (Date)